Department of State Division of Publications 312 Rosa L. Parks Ave., 8th Floor Nashville, TN 37243 Phone: 615-741-2650 Email: publications.information@tnsos.gov	For Department of State Use Only Sequence Number: 02-19-26 Rule ID(s): 10524 File Date: 2/19/2026 Effective Date: 5/20/2026

Rulemaking Hearing Rule(s) Filing Form

Rulemaking Hearing Rules are rules filed after and as a result of a rulemaking hearing (Tenn. Code Ann. § 4-5-205).

Pursuant to Tenn. Code Ann. § 4-5-229, any new fee or fee increase promulgated by state agency rule shall take effect on July 1, following the expiration of the ninety (90) day period as provided in § 4-5-207. This section shall not apply to rules that implement new fees or fee increases that are promulgated as emergency rules pursuant to § 4-5-208(a) and to subsequent rules that make permanent such emergency rules, as amended during the rulemaking process. In addition, this section shall not apply to state agencies that did not, during the preceding two (2) fiscal years, collect fees in an amount sufficient to pay the cost of operating the board, commission or entity in accordance with § 4-29-121(b).

Agency/Board/Commission:	Board of Medical Examiners, Polysomnography Professional Standards Committee
Division:	
Contact Person:	Ashley L. Fine, Senior Associate Counsel Grayson Carter, Assistant Commissioner for Legislative Affairs
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Revision Type (check all that apply):

X Amendment
___ New
___ Repeal

___ Content based on previous emergency rule filed on _____
___ Content is identical to the emergency rule

Rule(s) (**ALL** chapters and rules contained in filing must be listed here. If needed, copy and paste additional tables to accommodate multiple chapters. Please make sure that **ALL** new rule and repealed rule numbers are listed in the chart below. Please enter only **ONE** Rule Number/Rule Title per row)

Chapter Number	**Chapter Title**
0880-14	General Rules and Regulations Governing the Practice of Polysomnography
Rule Number	**Rule Title**
0880-14-.06	Retirement and Reinstatement

Place substance of rules and other info here. Please be sure to include a detailed explanation of the changes being made to the listed rule(s). Statutory authority must be given for each rule change. For information on formatting rules go to https://sos.tn.gov/products/division-publications/rulemaking-guidelines.

Chapter 0880-14
General Rules and Regulations Governing the Practice of Polysomnography

Amendments

Rule 0880-14-.06 Retirement and Reinstatement. Subparagraph (4)(d) is being amended to read as follows:

(4) (d) If an applicant seeks reinstatement of an expired license, then the applicant must submit proof of having obtained all continuing education as required by Rule 0880-14-.09 for each year that the license was expired, provided however, that these hours shall not exceed twenty (20) hours for any person applying for reinstatement of an expired license. The continuing education hours documented at the time of reinstatement of an expired license must have been successfully completed within twelve (12) months preceding the date of reinstatement. Continuing education hours obtained as a prerequisite for reinstating an expired license are in addition to the yearly requirement as provided in Rule 0880-14-.09. If an applicant seeks reinstatement from a retired license, then the applicant should submit verification of completion of all continuing education requirements, as provided in Rule 0880-14-.09, unless the applicant has obtained a waiver or modification of this continuing education requirement pursuant to Rule 0880-14-.09(1)(a)4.

Authority: T.C.A. §§ 63-1-107, 63-31-104, and 63-31-108.

* If a roll-call vote was necessary, the vote by the Agency on these rulemaking hearing rules was as follows:

Board Member	Aye	No	Abstain	Absent	Signature (if required)
Roy Shedd	X				
Charity Worrick				X	
James McGuirk	X				
Roxanne Valentino, MD	X				
Jim O. Donaldson	X				
Mark Spiceland				X	
Vacant					

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Board of Medical Examiners, Polysomnography Professional Standards Committee on 08/26/2025, and is in compliance with the provisions of T.C.A. § 4-5-222.

Board Member	Aye	No	Abstain	Absent	Signature (if required)
Stephen Loyd, MD	X				
Samantha McLerran, MD				X	
Randall E. Pearson, MD	X				
Todd Tillmanns, MD				X	
John Hale, MD				X	
Keith G. Anderson, MD	X				
Deborah Christiansen, MD	X				
Bethany Lawrence, MD	X				
Damon Petty, MD	X				
Michael Bittel	X				
James Diaz-Barriga	X				
Ricky Shelton				X	

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Board of Medical Examiners on 09/23/2025, and is in compliance with the provisions of T.C.A. § 4-5-222

I further certify the following:

Notice of Rulemaking Hearing filed with the Department of State on: *05/12/2025*

Rulemaking Hearing(s) Conducted on: (add more dates). *08/26/2025*

Date: 01/07/2026

Signature: Ashley L. Fine

Name of Officer: Ashley L. Fine

Title of Officer: Senior Associate Counsel, Department of Health

Agency/Board/Commission: Board of Medical Examiners, Polysomnography Professional Standards Committee

Rule Chapter Number(s): 0880-14

All rulemaking hearing rules provided for herein have been examined by the Attorney General and Reporter of the State of Tennessee and are approved as to legality pursuant to the provisions of the Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5.

Jonathan Skrmetti
Attorney General and Reporter

February 4, 2026
Date

Department of State Use Only

Filed with the Department of State on: 2/19/2026

Effective on: 5/20/2026

Tre Hargett
Secretary of State

RECEIVED

Feb 19 2026, 2:34 pm

Secretary of State
Division of Publications

Public Hearing Comments

One copy of a document that satisfies T.C.A. § 4-5-222 must accompany the filing.

There were no public comments received, either written or oral.

Regulatory Flexibility Addendum

Pursuant to T.C.A. §§ 4-5-401 through 4-5-404, prior to initiating the rule making process, all agencies shall conduct a review of whether a proposed rule or rule affects small business.

(1) The extent to which the rule or rules may overlap, duplicate, or conflict with other federal, state, and local governmental rules.

These rule amendments do not overlap, duplicate, or conflict with other federal, state, and local government rules.

(2) Clarity, conciseness, and lack of ambiguity in the rule or rules.

These rule amendments are established with clarity, conciseness, and lack of ambiguity.

(3) The establishment of flexible compliance and/or reporting requirements for small businesses.

These rule amendments do not contain reporting requirements for small businesses.

(4) The establishment of friendly schedules or deadlines for compliance and/or reporting requirements for small businesses.

These rule amendments do not contain reporting requirements for small businesses.

(5) The consolidation or simplification of compliance or reporting requirements for small businesses.

These rule amendments do not contain reporting requirements for small businesses.

(6) The establishment of performance standards for small businesses as opposed to design or operational standards required in the proposed rule.

These rule amendments do not contain any performance standards.

(7) The unnecessary creation of entry barriers or other effects that stifle entrepreneurial activity, curb innovation, or increase costs.

These rule amendments do not create unnecessary barriers or other effects that stifle entrepreneurial activity, curb innovation, or increase costs.

Impact on Local Governments

Pursuant to T.C.A. §§ 4-5-220 and 4-5-228, "On any rule and regulation proposed to be promulgated, the proposing agency shall state in a simple declarative sentence, without additional comments on the merits or the policy of the rule or regulation, whether the rule or regulation may have a projected financial impact on local governments. The statement shall describe the financial impact in terms of increase in expenditures or decrease in revenues."

The proposed rule amendments should not have a financial impact on local governments.

Additional Information Required by Joint Government Operations Committee

All agencies, upon filing a rule, must also submit the following pursuant to T.C.A. § 4-5-226(i)(1).

A brief summary of the rule and a description of all relevant changes in previous regulations effectuated by such rule;

The Board voted to remove language requiring all continuing education hours to be obtained within the last six months before reinstatement. Additionally, the Board voted to cap the number of continuing education hours at twenty hours, which equals two continuing education cycles.

A citation to and brief description of any federal law or regulation or any state law or regulation mandating promulgation of such rule or establishing guidelines relevant thereto;

T.C.A. § 63-31-104(13) grants the Committee with the authority to develop continuing education requirements that shall be met by licensed polysomnographic technologists.

Identification of persons, organizations, corporations or governmental entities most directly affected by this rule, and whether those persons, organizations, corporations or governmental entities urge adoption or rejection of this rule;

Applicants for reinstatement of expired licenses will be affected by the rule. The Committee did not receive any public comments regarding these rule amendments.

Identification of any opinions of the attorney general and reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rule;

None.

An estimate of the probable increase or decrease in state and local government revenues and expenditures, if any, resulting from the promulgation of this rule, and assumptions and reasoning upon which the estimate is based. An agency shall not state that the fiscal impact is minimal if the fiscal impact is more than two percent (2%) of the agency's annual budget or five hundred thousand dollars ($500,000), whichever is less;

This rule should not impact state or local government revenues or expenditures.

Identification of the appropriate agency representative or representatives, possessing substantial knowledge and understanding of the rule;

Ashley Fine, Senior Associate Counsel, Department of Health.

Identification of the appropriate agency representative or representatives who will explain the rule at scheduled meeting of the committees;

Ashley Fine, Senior Associate Counsel, Department of Health.
Grayson Carter, Assistant Commissioner for Legislative Affairs.

Office address, telephone number, and email address of the agency representative or representatives who will explain the rule at a scheduled meeting of the committees; and

Department of Health, Office of General Counsel, 665 Mainstream Drive, 2nd Floor, Nashville, TN, 37243, 615-741-1611, Ashley.1.Fine@tn.gov; 710 James Robertson Parkway, Nashville, TN 37243, 615-741-5233, Grayson.Carter@tn.gov.

Any additional information relevant to the rule proposed for continuation that the committee requests;

None.

RULES
OF
THE TENNESSEE BOARD OF MEDICAL EXAMINERS

CHAPTER 0880-14
GENERAL RULES AND REGULATIONS GOVERNING
THE PRACTICE OF POLYSOMNOGRAPHY

TABLE OF CONTENTS

0880-14-.01	Definitions	0880-14-.07	Disciplinary Grounds, Actions, and Civil Penalties
0880-14-.02	Fees	0880-14-.08	Officers, Consultants, Records, Advisory Rulings, and Screening Panels
0880-14-.03	Qualifications for Licensure	0880-14-.09	Continuing Education
0880-14-.04	Application Review, Approval, and Denial	0880-14-.10	Code of Ethics
0880-14-.05	Licensure Renewal		
0880-14-.06	Retirement and Reinstatement		

0880-14-.06 RETIREMENT AND REINSTATEMENT.

(1) A licensee who holds a current license and does not intend to practice as a polysomnographic technologist may apply to convert an active license to retired status. A licensee who holds a retired license will not be required to pay a renewal fee to maintain the license in retired status.

(2) A licensee who holds an active license may apply for retired status in the following manner:

(a) Obtain, complete, and submit to the Committee Office an Affidavit of Retirement form; or

(b) Submit to the Committee Office any other documentation which may be required.

(3) The effective date of retirement will be the date the Affidavit of Retirement is received in the Committee Office.

(4) A licensee whose license has been retired or expired may re-enter active status by doing the following:

(a) Obtain, complete, and submit to the Committee Office a Reinstatement Application form; and

(b) Pay the renewal fee and state regulatory fee as provided in Rule 0880-14-.02.

(c) If reinstatement is requested prior to the expiration of one (1) year from the date of retirement or expiration, then the licensee must pay the past due renewal fee and the late renewal fee.

(d) If an applicant seeks reinstatement of an expired license, then the applicant must submit proof of having obtained all continuing education as required by Rule 0880-14-.09 for each year that the license was expired, provided however, that these hours shall not exceed twenty (20) hours for any person applying for reinstatement of an expired license. The continuing education hours documented at the time of reinstatement of an expired license must ~~equal the total hours required had the license remained in an active status, and must~~ have been successfully completed within twelve (12) ~~six (6)~~ months ~~immediately~~ preceding the date of reinstatement. Continuing education hours obtained as a prerequisite for reinstating an expired license are in addition to the yearly

requirement as provided in Rule 0880-14-.09. If an applicant seeks reinstatement from a retired license, then the applicant should submit verification of completion of all continuing education requirements, as provided in Rule 0880-14-.09, unless the applicant has obtained a waiver or modification of this continuing education requirement pursuant to Rule 0880-14-.09(1)(a)4~~(4)~~.

(e) If licensure retirement or expiration was in excess of two (2) years, the licensee may be required to successfully complete whatever educational and/or testing requirements the Committee determines is necessary to establish current levels of competency.

(5) Reinstatement applications shall be treated as licensure applications and review decisions shall be governed by Rule 0880-14-.04.

Authority: T.C.A. §§ 63-1-107, 63-31-104, and 63-31-108.